

Gascart Consultant & Technical Service Participation Agreement

(Generic Standard Draft for Consultants, Freelancers, Technical Experts & Service Providers)

This Participation Agreement ("Agreement") is entered into on this ____ day of _____ 20__, by and between:

1. STUT INSTRUMENTS

having its principal office at #5, Rajdhani Buildings, KHB Colony, Sirsi, Karnataka, India, owner and operator of the platform [Gascart](#), hereinafter referred to as "STUT", which expression shall include its successors, affiliates and permitted assigns;

AND

2. CONSULTANT / TECHNICAL PARTICIPANT

Name: _____

Organization (if any): _____

Address: _____

hereinafter referred to as the "Participant", which expression shall include its representatives, successors and permitted assigns.

STUT and the Participant are individually referred to as a "Party" and collectively as the "Parties".

1. PREAMBLE

WHEREAS:

a. STUT operates [Gascart](#) a platform intended to connect stakeholders in the Indian Compressed Biogas (CBG), Biogas, RNG, Bioenergy and allied industrial ecosystem;

b. The Participant is engaged in one or more professional or technical activities including but not limited to:

- consulting,
- engineering,
- commissioning,
- plant operations,
- maintenance,
- troubleshooting,
- instrumentation,
- automation,
- electrical systems,
- fabrication,
- drafting,

- process design,
- project management,
- training,
- technical supervision,
- field services,
- or industrial support activities;

c. The Parties desire to establish a non-exclusive framework for professional networking, technical collaboration, visibility, referrals, and commercial opportunities through the [Gascart](#) platform.

Accordingly, the Parties record their understanding as follows.

2. PURPOSE

The purpose of this Agreement is to facilitate onboarding of consultants, technical experts, freelancers, and service providers within the [Gascart](#) ecosystem for:

- professional visibility,
 - technical networking,
 - industry collaboration,
 - consulting opportunities,
 - field service opportunities,
 - project referrals,
 - training and advisory support,
 - and ecosystem participation.
-

3. SCOPE OF PARTICIPATION

The Participant may:

- create professional listings or profiles on Gascart;
- showcase expertise, certifications, references, or technical capabilities;
- participate in technical discussions and collaborations;
- receive consulting, troubleshooting, commissioning, maintenance, or project enquiries;
- participate in exhibitions, webinars, technical events, or promotional activities associated with Gascart;
- independently collaborate with customers or ecosystem participants outside the platform.

STUT may:

- onboard and showcase consultants and technical experts;
- facilitate industry visibility and introductions;
- organize networking and promotional initiatives;
- maintain participant directories and categorization;

- promote ecosystem collaboration on a best-effort basis.
-

4. NON-EXCLUSIVITY

a. This Agreement is strictly non-exclusive.

b. The Participant remains free to:

- work independently,
- accept assignments from other organizations,
- participate in competing platforms,
- provide services directly to customers,
- appoint representatives or partners,
- or conduct any lawful professional activity.

c. STUT shall also remain free to onboard additional consultants, freelancers, or technical participants operating in similar domains.

d. During the 1st year from onboarding on the platform Gascart will not be charging any fees or cost recovery for listing up to:

- 5 service categories,
- 3 profile updates or edits,
- and standard visibility support on the platform.

e. On expiry of the 1st year, based on the merit and efforts involved in maintaining such a platform, STUT may ask for a fixed annual subscription fee.

5. COMMERCIAL UNDERSTANDING

a. This Agreement does not create any guaranteed:

- employment,
- consulting assignment,
- project allocation,
- revenue,
- minimum work order,
- or assured lead generation.

b. Any commercial transaction or professional engagement between the Participant and third parties arising through Gascart shall be independently negotiated between such parties.

c. STUT is separately entering into, through this Agreement, arrangements relating to:

- referral arrangements,
- consulting coordination,
- lead sharing,
- promotional partnerships,
- paid listings,

- advertising support,
 - technical collaboration,
 - or service partnerships.
- d. Every converted lead may attract:
- 2.5% referral fees,
 - or Rs.1000,
- whichever is higher, unless otherwise mutually agreed in writing.
- e. Unless separately agreed in writing, STUT shall not be responsible for:
- service quality,
 - consulting outcomes,
 - project delays,
 - field execution,
 - safety compliance,
 - customer disputes,
 - statutory compliance,
 - payment recovery,
 - or performance obligations of the Participant.
- f. Gascart is only a platform for making professional services, technical expertise, and capabilities visible to the ecosystem.
-

6. PARTICIPANT RESPONSIBILITIES

The Participant agrees that:

- all information shared for posting on the platform shall be reasonably accurate and lawful;
 - it shall not knowingly misrepresent qualifications, certifications, experience, references, or capabilities;
 - it shall comply with applicable Indian laws and statutory requirements;
 - it shall maintain professional and ethical conduct in all ecosystem interactions;
 - it shall independently evaluate customers, assignments, vendors, and opportunities before entering engagements;
 - Gascart or STUT are to be considered as a virtual visibility and networking platform only.
-

7. PLATFORM ROLE LIMITATION

- a. Gascart functions primarily as an industry networking and discovery platform.

b. STUT acts only as a platform owner, facilitator, ecosystem promoter, or industry participant unless separately contracted for specific assignments.

c. STUT shall not be considered:

- an employer,
 - guarantor,
 - financial intermediary,
 - legal representative,
 - agent,
 - EPC contractor,
 - technical certifier,
 - or quality assurance authority
- for participant engagements unless expressly agreed in writing.
-

8. CONFIDENTIALITY

a. The Parties may exchange technical, business, commercial, project-related, or customer-related information during interactions.

b. Such information shall be treated as confidential unless:

- already available in public domain,
- independently developed,
- or required to be disclosed by law.

c. Neither Party shall misuse proprietary documents, drawings, pricing, software, customer databases, technical know-how, or project-related information belonging to the other Party.

d. Customer privacy commitments shall be respected and fulfilled by both Parties.

9. INTELLECTUAL PROPERTY

a. All trademarks, logos, designs, software, reports, presentations, technical documents, methodologies, and intellectual property shall remain the property of the originating Party.

b. The Participant authorizes STUT to display or not display:

- name,
 - profile,
 - expertise categories,
 - certifications,
 - publicly shareable references,
 - and promotional content
- for ecosystem visibility and platform-related activities unless otherwise notified in writing.
-

10. LIMITATION OF LIABILITY

a. STUT shall not be liable for:

- missed opportunities,
- project losses,
- technical disputes,
- commercial disagreements,
- payment defaults,
- field failures,
- safety incidents,
- or consequential damages arising from participant interactions.

b. Participation on the platform shall be on a best-effort and good-faith basis.

c. Leads may be forwarded as received to the Participant.

d. Gascart or STUT and its personnel may choose to refrain from participation in negotiation cycles taking place between customers and Participants.

11. TERM AND TERMINATION

a. This Agreement shall remain valid for an initial period of One (1) year from the Effective Date.

b. Either Party may terminate this Agreement by providing Thirty (30) days written notice.

c. Termination shall not affect:

- ongoing independent commercial contracts,
- accrued obligations,
- confidentiality obligations,
- or intellectual property rights.

12. GOVERNING LAW AND DISPUTE RESOLUTION

a. This Agreement shall be governed by the laws of India.

b. The Parties shall first attempt amicable resolution through mutual discussions.

c. Any unresolved disputes shall be referred to arbitration under the Arbitration and Conciliation Act, 1996.

d. The arbitration venue shall be Bengaluru, Karnataka, India.

13. NON-BINDING NATURE

Except for clauses relating to:

- confidentiality,
- intellectual property,
- limitation of liability,
- governing law,
- and dispute resolution,

this Agreement represents a framework of mutual understanding and ecosystem participation and does not create binding obligations to award projects, consulting assignments, or employment.

Both the parties are aware that certain cases would lead to circumventing after the lead generation, hence they agree to any specific amendments to this working agreement as deemed necessary time to time to ensure a fair play.

14. SIGNATURES

IN WITNESS WHEREOF, the Parties have executed this Agreement on the date first written above.

For STUT INSTRUMENTS

Name: _____

Designation: _____

Signature: _____

Date: _____

Seal:

For CONSULTANT / TECHNICAL PARTICIPANT

Name: _____

Organization (if any): _____

Designation: _____

Signature: _____

Date: _____

Seal (if applicable): _____